

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #03	CCRB Case #: 202005543	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 06/02/2020 11:30 PM, Tuesday, 06/02/2020 11:30 PM	Location of Incident: Houston Street in the Lower East Side; 42nd Street - Bryant Park Subway Station entrance	18 Mo. SOL 5/4/2022	Precinct: 14		
Date/Time CV Reported Sun, 08/09/2020 2:22 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 08/09/2020 2:22 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. POM Akmannur Hossain	5072	967551	TB DT01
4. POF Maria Chau	01975	961685	TB DT01
5. DT3 Mark Moccia	00773	930748	047 DET
6. POM Kelvin Nunez	15229	961014	TB DT01
7. LT Anthony Blanco	00000	948677	OMAP

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT Kenneth Gorman	00000	921387	TB DT01
2. LT Robert Sannasardo	00000	931144	TB DT01

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: In Houston Street in the Lower East Side in Manhattan, officers made a sexually suggestive gesture towards § 87(2)(b)	A . Officer(s) Unidentified
B . An officer	Discourtesy: In Houston Street in the Lower East Side in Manhattan, an officer spoke discourteously to § 87(2)(b)	B . Officer(s) Unidentified
C . An officer	Off. Language: In Houston Street in the Lower East Side in Manhattan, an officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Officer(s) Unidentified
D . LT Anthony Blanco	Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Lieutenant Anthony Blanco used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Kelvin Nunez	Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Kelvin Nunez used physical force against § 87(2)(b)	E . Unsubstantiated
F . POF Maria Chau	Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Maria Chau used physical force against § 87(2)(b)	F . Unsubstantiated
G . POM Akmannur Hossain	Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Akmannur Hossain used physical force against § 87(2)(b)	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . DT3 Mark Moccia	Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Detective Mark Moccia used physical force against § 87(2)(b)	H . Unsubstantiated
I . Officers	Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, officers used a chokehold against § 87(2)(b)	I . Officer(s) Unidentified
J . Officers	Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, officers used physical force against § 87(2)(b)	J . Officer(s) Unidentified
K . POF Maria Chau	Discourtesy: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Maria Chau spoke discourteously to § 87(2)(b)	K . Unsubstantiated
L . POF Maria Chau	Off. Language: Police Officer Maria Chau made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	L . Unsubstantiated
M . POM Kelvin Nunez	Discourtesy: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Kelvin Nunez spoke discourteously to § 87(2)(b)	M . Unsubstantiated
N . POF Maria Chau	Force: Police Officer Maria Chau used physical force against § 87(2)(b)	N . Unsubstantiated
O . POF Maria Chau	Discourtesy: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Maria Chau spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . POM Akmannur Hossain	Abuse: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Akmannur Hossain did not obtain medical treatment for § 87(2)(b)	P . Unfounded
Q . DT3 Mark Moccia	Abuse: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Detective Mark Moccia did not obtain medical treatment for § 87(2)(b)	Q . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On August 9, 2020, § 87(2)(b) filed this complaint at the CCRB through the call processing system on behalf of herself and § 87(2)(b).

On June 2, 2020, at approximately 11:30p.m., in the vicinity of Houston Street in the Lower East Side in Manhattan, § 87(2)(b) and § 87(2)(b) walked home when an unmarked vehicle drove up to them. Four unidentified officers rolled down their windows and licked their lips towards § 87(2)(b) (Allegation A: Abuse of Authority, officers unidentified). One of the unidentified officers called § 87(2)(b) a “stupid bitch.” (Allegation B: Discourtesy and Allegation C: Offensive Language, officer unidentified).

§ 87(2)(b) and § 87(2)(b) walked along 42nd Street, near the Bryant Park Subway Station, when they noticed the road was barricaded and a large group of approximately 20 uniformed officers stood nearby. § 87(2)(b) asked several officers if they could get through the barricade so that they could get to the train station in Times Square. Deputy Inspector Kenneth Gorman from Transit District 01 instructed officers to arrest her. PO Maria Chau, PO Kelvin Nunez, PO Akmanur Hossain from Transit Bureau 1, Lt. Anthony Blanco from Office of Management Analysis and Planning, and Det. Mark Moccia from the 47th Detective Squad approached § 87(2)(b). § 87(2)(b) grabbed her, and dragged her to the ground (Allegations D – H: Force, unsubstantiated). Multiple officers pulled § 87(2)(b) by the neck and held her face down by the neck (Allegation I: Force, unsubstantiated). Officers also took § 87(2)(b) to the ground (Allegation J: Force, officers unidentified).

PO Chau called § 87(2)(b) a “bitch” (Allegation K: Discourtesy, unsubstantiated) (Allegation L: Offensive Language, unsubstantiated) and PO Nunez instructed § 87(2)(b) to, “Shut the fuck up” (Allegation M: Discourtesy, unsubstantiated). PO Chau then pulled § 87(2)(b)’s arm back and pulled it until it snapped, breaking it (Allegation N: Force, unsubstantiated). PO Chau instructed § 87(2)(b) to, “Shut the fuck up” (Allegation O: Discourtesy, unsubstantiated). § 87(2)(b) was placed in handcuffs along with § 87(2)(b). Both were placed inside of a van and transported to another location. PO Hossain and Det. Mark Moccia from the 47th Precinct Detective Squad were in the vehicle with § 87(2)(b) and § 87(2)(b). § 87(2)(b) requested medical attention for her arm but was denied it (Allegations P and Q: Abuse of Authority, unfounded). § 87(2)(b) and § 87(2)(b) were summonsed as a result of this incident.

§ 87(4-b) § 87(2)(g)

The investigation received two BWC videos from PO Hossain regarding this incident (Board Review 01; Summarized in Board Review 08). The investigation received MTA video footage that did not capture this incident (Board Review 02 to Board Review 07; Summarized in Board Review 09).

Findings and Recommendations

Allegation (A) Abuse of Authority: In Houston Street in the Lower East Side in Manhattan, officers made a sexually suggestive gesture towards § 87(2)(b)

Allegation (B) Discourtesy: In Houston Street in the Lower East Side in Manhattan, an officer spoke discourteously to § 87(2)(b)

Allegation (C) Offensive Language: In Houston Street in the Lower East Side in Manhattan, an officer spoke discourteously to § 87(2)(b)

In her statement to the CCRB, § 87(2)(b) stated that she had been walking home with § 87(2)(b) on Houston Street in the Lower East Side in Manhattan when an unmarked dark grey

vehicle drove up to them. § 87(2)(b) did not remember the license plate number of the vehicle. Four unidentified officers rolled down the vehicle windows and laughed towards § 87(2)(b) and § 87(2)(b). The officer in the front passenger seat licked their lips towards § 87(2)(b). The officers in the rear seats also licked their lips towards § 87(2)(b). § 87(2)(b) interpreted these actions to be sexually motivated and creepy. At one point, one of the officers called § 87(2)(b) a, “Stupid bitch.” § 87(2)(b) described the officers as white males in their mid-twenties to thirties with some facial hair and dressed in plainclothes with vests. One of the officers had brown hair (Board Review 10).

§ 87(2)(b) was uncooperative with the investigation, and therefore a statement could not be obtained from her (see IAs for contact attempts).

The investigation received the roll call, command log, and daily vehicle assignment sheet from the 14th Precinct, the precinct responsible for the incident location. The command log and roll call indicated that multiple male officers were working at the time of the incident. The daily vehicle assignment sheet listed five unmarked vehicles, none of which were listed as being in service during the third platoon on the incident date. (Board Review 26).

In their statements to the CCRB, DI Gorman, Lt. Blanco, Lt. Sannasardo, and PO Nunez all denied driving in a vehicle and licking their lips toward § 87(2)(b) while laughing at her. They also denied having knowledge of any officer calling anyone a “bitch” (Board Review 16, Board Review 18, Board Review 20, Board Review 24).

While § 87(2)(b) provided the description of a dark grey unmarked vehicle and white males in their mid-twenties to thirties with facial hair, the investigation was unable to identify the subject officers with that information alone. As noted above, § 87(2)(b) was uncooperative with the investigation and a statement could not be obtained from her. Documents received from the precinct responsible for the area of the incident did not show any vehicles matching the description provided by § 87(2)(b) that were being used at the time of the incident. Furthermore, the officers who were interviewed in connection with other allegations involved in this complaint denied having any knowledge of the allegations made. § 87(2)(g)

It is therefore recommended that **Allegations A to C** be closed as **officers unidentified**.

Allegation (D) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Lieutenant Anthony Blanco used physical force against § 87(2)(b)

Allegation (E) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Kelvin Nunez used physical force against § 87(2)(b)

Allegation (F) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Maria Chau used physical force against § 87(2)(b)

Allegation (G) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Akmannur Hossain used physical force against § 87(2)(b)

Allegation (H) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Detective Mark Moccia used physical force against § 87(2)(b)

Allegation (I) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, officers used a chokehold against § 87(2)(b)

Allegation (J) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, officers used physical force against § 87(2)(b)

According to § 87(2)(b) she and § 87(2)(b) attempted to locate a subway to go home when they encountered two girls. § 87(2)(b) offered to help the girls find a train, and both she and § 87(2)(b) walked with them along 42nd Street by Bryant Park, near the intersection of either 6th or

7th Avenue. During this time, § 87(2)(b) saw that the road was barricaded and there was a large group of approximately twenty uniformed officers standing approximately six feet away from § 87(2)(b) and the two girls. § 87(2)(b) and the girls asked to go through the barricades to go through to Times Square but were denied. At one point, one of the two girls started to walk away. When she did this, an officer lifted the gate of the barricade and reached towards his holster. § 87(2)(b) stated, “She’s mad young, and you guys are coming at her when her back is turned,” in response to this action. DI Gorman walked up to § 87(2)(b) and instructed her to go home. § 87(2)(b) refused to leave. Once she told DI Gorman that she would not leave, PO Hossain, PO Nunez, PO Chau, Det. Moccia, and other officers “bum rushed” her. The officers grabbed § 87(2)(b) by her neck and tried to throw her down and drag her. The officers stepped on § 87(2)(b) pulled her, and tried to restrain her. § 87(2)(b) was brought face down onto the ground as multiple officers held her by her neck. Multiple officers were making contact with § 87(2)(b)’s neck with their hands and tried to shove her on the ground on her face using their whole weight. While officers used force on her, § 87(2)(b) tried to protect herself and moved her body around. § 87(2)(b) tried to fight the officers because they were on her neck. § 87(2)(b) did not further explain her actions during this time. Officers then “bum rushed” § 87(2)(b) and tried to tackle § 87(2)(b) to the ground (Board Review 10).

§ 87(2)(b) filed a Notice of Claim in regard to this incident. In the claim, § 87(2)(b) stated that officers approached her and assaulted her by intentionally striking/punching § 87(2)(b) in the face, head, and body and causing severe and permanent personal injuries. She further claims that officers struck her in the face, head, and/or jaw, and body. These resulted in a fractured right arm/elbow, body contusions, physical pain, and psychological damage (Board Review 32). The investigation was unable to receive any medical documentation depicting any possible injuries resulting from the alleged force. The investigation requested signed Health Insurance Portability and Accountability Act (HIPAA) forms from § 87(2)(b) to request such documents but did not receive any.

As noted above, § 87(2)(b) was uncooperative, and a statement could not be obtained from her (see IAs for contact attempts).

Requests to the NYPD for any Threat, Resistance, and Injury reports, and Medical Treatment of Injury Reports, or summonses generated for § 87(2)(b) and § 87(2)(b) were returned negative (Board Review 29).

A request to Patrol Borough Manhattan South for detail rosters returned 99 pages of rosters. None of these pages reveal any rosters which indicated which officers were posted at Times Square or at Bryant Park on the incident date (Board Review 36).

In PO Hossain’s first BWC video, at approximately 00m02s, a female wearing a black shirt and glasses with pink streaks in her hair is seen standing near an officer in a helmet. The female is identified by the investigation as § 87(2)(b). At 00m08s, multiple officers are seen grabbing and effecting the arrest of § 87(2)(b). § 87(2)(b) grabs onto a handrail and her left leg is seen kicking upwards. § 87(2)(b) is pulled back towards a crowd of other officers and is turned away from the BWC video. Multiple officers gather around § 87(2)(b) and are seen moving back and forth with § 87(2)(b) in the middle. However, it cannot be discerned what actions, if any, are taken by officers against § 87(2)(b) as she ends up on the ground. Once § 87(2)(b) is on the ground, multiple officers continue to gather around her, and it cannot be seen who is involved with her on the ground or what actions the officers take. At approximately 00m11s, a female wearing a red top, identified by the investigation as § 87(2)(b) is briefly seen standing on the left side of the screen with her arms behind her back and screaming. § 87(2)(b) is already

placed in handcuffs at this point and the actions leading up to her arrest are not captured (Board Review 01).

PO Chau and PO Nunez did not record BWC footage because their BWC battery died in the middle of her tour (Board Review 14, Board Review 16). Det. Moccia and Lt. Blanco were not equipped with any BWC on the date of the incident (Board Review 20, Board Review 22).

In his statement to the CCRB, DI Gorman stated that he went to the incident location in order to check on his officers that were assigned to a detail at that area. The area contained several blockades and barricades at the time. The barricades blocked entrance into 42nd Street and continued westbound towards Times Square, blocking entrances into Times Square as well. Some time while checking on the officers, four females, including § 87(2)(b) and § 87(2)(b) arrived at the location. § 87(2)(b) and the other two females spoke to multiple officers, including DI Gorman, and requested to go past the barricades, into a Times Square train station. DI Gorman and other officers all informed the females that Times Square was closed off and that they cannot enter the location. All of the females shouted and screamed towards DI Gorman and the officers, stating that they wanted to enter Times Square. After several moments of refusing to leave, one officer stepped forward past one of the barricades. When this occurred, all of the females ran into a train station nearby. After a few moments, there was a commotion where officers placed § 87(2)(b) under arrest. § 87(2)(b) had returned up to street level from the train station. DI Gorman was half a street away from the officers when this occurred. The officers that were in front of DI Gorman decided to place § 87(2)(b) under custody (Board Review 24).

In his statement to the CCRB, PO Hossain stated he was assigned to 42nd Street and 6th Avenue at a barricade that prevented entrance from the west bound of 6th Avenue towards 8th Avenue, blocking off Times Square. PO Hossain was assigned at this post due to a protest that had been going on. At one point, a group of four girls, including § 87(2)(b) and § 87(2)(b) approached the officers stationed at the location and asked to pass the barricades and into Times Square. The girls were told by officers that they were not able to go through the barricade. The girls became “irate” by arguing with the officers, using vulgarity, and screaming. Two of the girls left, leaving § 87(2)(b) and § 87(2)(b). Eventually, § 87(2)(b) and § 87(2)(b) went to the subway next to them but returned shortly afterwards. This was the point DI Gorman gave the order to arrest § 87(2)(b) and § 87(2)(b). When this order was given, PO Nunez and PO Chau made the arrest. PO Hossain that that he knew officers took § 87(2)(b) to the ground but did not specifically see how this occurred. PO Hossain did not witness any officers grabbing § 87(2)(b) by the neck, stepping on her, pulling her face down, or holding her by the neck using their full weight. PO Hossain did not perform any of these actions. PO Hossain did not see any officers make any contact with § 87(2)(b)'s neck, nor did he make any contact with § 87(2)(b)'s neck. At the time, § 87(2)(b) was at the entrance of the subway station and was taken down. The officers were not from his command and PO Hossain did not know the names of the officers. The officers took § 87(2)(b) down to the ground, put her hands behind her back, and put her in handcuffs. PO Hossain described § 87(2)(b)'s body positioned with her face towards the ground held down by her hands. PO Hossain did not recall any other physical actions that were taken against § 87(2)(b) (Board Review 12).

In his statement to the CCRB, PO Nunez stated that he was outside of the 42nd Street Bryant Park subway station working a protest assignment behind a barricade. PO Nunez explained that there were multiple barricades that formed a metal fence and prevented entry by any vehicles or pedestrians on the side toward 6th Avenue. There were more than twenty officers on scene at the time from multiple commands. While PO Nunez was behind the barricade, two female civilians, identified by the investigation as § 87(2)(b) and § 87(2)(b) approached the barricade. They

asked to go into Times Square. Multiple officers told them that the location was closed off. § 87(2)(b) and § 87(2)(b) argued with officers and had attempted to physically go over the barricades when DI Gorman instructed officers to arrest them. Multiple officers moved forward to arrest § 87(2)(b) and § 87(2)(b). PO Nunez did not know which officers these were. PO Nunez remained behind the barricade as § 87(2)(b) and § 87(2)(b) was placed under arrest. PO Nunez was not involved during the arresting process. PO Nunez did not see any officer grab a female by the neck and take her to the ground. PO Nunez did not do this action at any point. PO Nunez stated that neither § 87(2)(b) nor § 87(2)(b) were thrown to the ground and did not know how one of them ended up on the ground. None of the officers present stepped on the females while they were on the ground. PO Nunez did not step on the females while they were on the ground (Board Review 16).

In her statement to the CCRB, PO Chau stated that she was outside of the 42nd Street Bryant Park subway station entrance and part of a barricade. The barricade blocked the entire area between Bryant Park and Times Square, preventing any entry. PO Chau did not know the exact reason why the area was barricaded, but believed it was to prevent protestors from entering that area. PO Chau noticed § 87(2)(b) and § 87(2)(b) talking to multiple officers, trying to get into the barricaded area. Both § 87(2)(b) and § 87(2)(b) argued with multiple officers and refused to listen to instructions to leave. The girls went back and forth between the subway station and the barricades for 15 minutes when DI Gorman made the final command to arrest the girls. Multiple officers approached the girls to make the arrest, including Lt. Blanco, Lt. Sannasardo, PO Nunez, and other officers from different commands. PO Nunez went to the left of § 87(2)(b) and grabbed her arm, around the wrist, to help place the handcuffs on. PO Chau did not use any physical force at the time. § 87(2)(b) kicked and screamed during the arrest and resisted. § 87(2)(b) was taken down to the ground because of her resistance. PO Chau was not involved during the process of taking § 87(2)(b) to the ground and did not know which officers were involved in the process. Approximately four officers held § 87(2)(b) to get handcuffs on her. Once she was in handcuffs, PO Chau helped pick her up and walked her to a police van. PO Chau did not make any contact with § 87(2)(b)'s neck. PO Chau did not use any chokehold against § 87(2)(b). PO Chau did not see any other officer contact § 87(2)(b)'s neck or place her in a chokehold. § 87(2)(b) did not make any comments about officers contacting her neck or being unable to breathe. PO Chau did not take § 87(2)(b) down so that she was facedown and held by the neck and by her entire weight. PO Chau did not see any other officer take such actions. PO Chau confirmed that § 87(2)(b) was face down on the ground with her body straight. Officers did not take any action except hold her by the arms to get her to the ground. PO Chau only held § 87(2)(b)'s wrists as she tried to get handcuffs on § 87(2)(b). PO Chau did not make any physical contact with PO § 87(2)(b). PO Chau did not see any other officer make physical contact with § 87(2)(b) or tackle § 87(2)(b) onto the ground (Board Review 14).

In his statement to the CCRB, Det. Moccia stated that he did not have any independent recollection of the incident. Upon showing him PO Hossain's BWC video which depicted Det. Moccia in front of a van, Det. Moccia recalled that he was assigned to a prisoner van and went to location only to pick them up for the arrest. Det. Moccia did not have any recollection of an incident where § 87(2)(b) was taken to the ground and was choked in the process (Board Review 22).

In his statement to the CCRB, Lt. Blanco stated that he drove DI Gorman to the incident location to check on a post. The post was a detail that had multiple commands in on location to keep a street closed during a protest. While Lt. Blanco was there, three female civilians arrived. They spoke to DI Gorman at the time. Lt. Blanco did not know the contents of that conversation and unable to hear the dialogue between them. After two to three minutes, DI Gorman instructed officers to arrest the civilians. Every officer on scene approached the civilians. Lt. Blanco did not recall his

exact involvement during the arrest process and was unable to state conclusively if he was involved or not. Lt. Blanco stated he may have been in close proximity of the civilians when the command to arrest them was given but did not remember if he physically grabbed any of the civilians. At one point, the civilian was placed face down on the ground. Lt. Blanco did not recall how she ended up on the ground. Lt. Blanco did not see any officer wrap their arm around the civilian's neck. Lt. Blanco did not recall if the civilian complained of not being able to breathe. The only physical contact Lt. Blanco recalled having was picking the civilian up off the floor (Board Review 20).

In his statement to the CCRB, Lt. Sannasardo stated that he was at a fixed post detail outside of the 42nd Street Bryant Park subway station, where there were barricades that blocked civilians or vehicles from going through westbound towards Times Square. Throughout the day, civilians asked to go through the barricade to Times Square and were instructed to go a different way. While at the post, two female civilians, identified by the investigation as § 87(2)(b) and § 87(2)(b) arrived and spoke to some officers. Lt. Sannasardo was within earshot and heard them request to go through the barricade. DI Gorman arrived on scene and gave the command to arrest the females after speaking to them. Lt. Sannasardo saw multiple officers moving the barricades to the side in order to walk to the females and arrest them. During this time, Lt. Sannasardo was blocked off by a moving barricade and was prevented from approaching the girls. Lt. Sannasardo did not see the overall apprehension of the females. Lt. Sannasardo did not see PO Chau or PO Nunez make any physical contact with the females. Lt. Sannasardo did not see any officer step on the girls. Lt. Sannasardo did not see any officers hold the girl facedown onto the ground (Board Review 18).

All parties agree that multiple officers approached § 87(2)(b) in order to place her under arrest. The allegations that officers pulled and dragged § 87(2)(b) to the ground by the neck and continued to hold her by the neck and restrain her are disputed by all officers. While the investigation received some BWC video, the footage captured does not show the arrest process of § 87(2)(b) who is already seen in handcuffs at the point the BWC video recording started. § 87(2)(g)

It is therefore recommended that **Allegations D to H** be closed as **unsubstantiated**.

§ 87(2)(b)'s allegations that officers used a chokehold by holding her down by the neck is disputed by all officers. Furthermore, while § 87(2)(b) was able to describe which officers used force against her, she was unable to provide descriptions of the officers that held her neck. § 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **officers unidentified**.

While § 87(2)(b) alleged that officers used the same force to take down § 87(2)(b) and place her under arrest as they did with her, lack of a statement from § 87(2)(b) prevented the investigation from obtaining additional information regarding this allegation. While BWC video show an officer grabbing § 87(2)(b) she is immediately pulled away from the camera view and surrounded by multiple officers, preventing the investigation from seeing the actual handcuffing process. § 87(2)(g)

It is therefore recommended that **Allegation J** be closed

as officers unidentified.

Allegation (K) Discourtesy: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Maria Chau spoke discourteously to § 87(2)(b)

Allegation (L) Offensive Language: Police Officer Maria Chau made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (M) Discourtesy: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Kelvin Nunez spoke discourteously to § 87(2)(b)

According to § 87(2)(b) while she was being taken to the ground, PO Chau called § 87(2)(b) a, “Bitch,” and instructed her to, “Shut the fuck up.” PO Nunez also instructed § 87(2)(b) to, “Shut the fuck up.” PO Chau stated that this was what § 87(2)(b) deserved. PO Chau appeared to love to tell § 87(2)(b) how much she “deserved” it (Board Review 10).

According to PO Chau, she did not make any statements towards § 87(2)(b) while she was on the ground. Once § 87(2)(b) was placed in handcuffs, both PO Chau and PO Nunez walked her to the corner of the street. PO Chau denied using any profanity during her interaction with § 87(2)(b). PO Chau did not hear any officer use profanity. PO Chau did not call § 87(2)(b) a, “bitch.” PO Chau did not instruct § 87(2)(b) to, “Shut the fuck up.” PO Chau did not hear PO Nunez make such statements. PO Chau did not make any of those statements in the presence of § 87(2)(b). PO Chau did not call § 87(2)(b) “bitches” (Board Review 14).

According to PO Nunez, he was not involved during the arrest process. No profanity was used towards § 87(2)(b) at any point. No officers made the statement, “Shut the fuck up,” or called anyone a “bitch.” PO Nunez did not hear any officer make the statements, “You bitch. Shut the fuck up,” during the arrest process (Board Review 16).

PO Hossain, Lt. Blanco, Lt. Sannasardo, and DI Gorman all provided statements consistent with PO Chau’s and PO Nunez’s. None of the officers heard the use of any profanity during this incident (Board Review 12, Board Review 18, Board Review 20, Board Review 24).

PO Hossain’s BWC video captures the arrest of § 87(2)(b) and does not depict any video or audio from the time § 87(2)(b) was arrested (Board Review 01).

§ 87(2)(g)

It is therefore recommended that **Allegations K to M** be closed as **unsubstantiated**.

Allegation (N) Force: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Maria Chau used physical force against § 87(2)(b)

Allegation (O) Discourtesy: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Maria Chau spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that while she was on the ground, PO Chau grabbed § 87(2)(b)’s right arm and put it in an unusual position. PO Chau twisted it all the way around § 87(2)(b)’s back and snapped it. § 87(2)(b) heard her arm snap and knew it was broken. § 87(2)(b) told PO Chau that her arm was broken and that she would not run or resist. PO Chau told § 87(2)(b) to, “Shut the fuck up” (Board Review 10).

According to PO Chau, she only held § 87(2)(b)’s wrists as officers tried to get handcuffs on her. PO Chau did not twist § 87(2)(b)’s arm around her back and snap it. PO Chau did not see any

other officer do so. PO Chau did not hear § 87(2)(b)'s arm snap. PO Chau did not believe any part of § 87(2)(b)'s arm was broken at the time. PO Chau did not hear any comments regarding pain to her arm. PO Chau did not remember if § 87(2)(b) stated that she would stay and that her arm hurts. PO Chau did not make any statements to § 87(2)(b) while she was on the ground. PO Chau did not instruct § 87(2)(b) to, "Sut the fuck up," as she held her arm (Board Review 14).

As stated above, PO Hossain, Lt. Blanco, and Lt. Sannasardo all provided statements that none of the officers heard the use of any profanity during this incident. None of the officers saw PO Chau or any officer use force to break § 87(2)(b)'s arm (Board Review 12, Board Review 18, Board Review 20).

As stated in the above allegations, PO Hossain's BWC video only captures footage after § 87(2)(b)'s arrest. No video or audio of § 87(2)(b)'s arrest is captured (Board Review 01).

As stated in Allegations D to J, no medical documentation could be obtained due to lack of signed HIPAA forms.

§ 87(2)(b)'s allegations that PO Chau broke her arm and used profanity towards her is directly disputed by PO Chau. The investigation requested HIPAA forms from § 87(2)(b) in order to request medical documents depicting the broken arm but did not receive any from § 87(2)(b).
§ 87(2)(g)

It is therefore recommended that **Allegations N and O** be closed as **unsubstantiated**.

Allegation (P) Abuse of Authority: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Police Officer Akmannur Hossain did not obtain medical treatment for

§ 87(2)(b)

Allegation (Q) Abuse of Authority: At the 42nd Street - Bryant Park Subway Station entrance in Manhattan, Detective Mark Moccia did not obtain medical treatment for

§ 87(2)(b) stated that she and § 87(2)(b) were placed in the back of a police van. § 87(2)(b) requested medical attention for her broken arm from PO Hossain and Det. Moccia. The officers would not provide § 87(2)(b) with medical attention (Board Review 10).

In PO Hossain's BWC second video, at 00m00s, § 87(2)(b) dressed in an open back red top, is seen being placed in handcuffs behind her back. At 00m30s, audio starts, and § 87(2)(b) is heard stating, "...shit hurts." § 87(2)(b) then enters a van, where Det. Moccia is seen inside. Once inside, § 87(2)(b) states, "Can you please loosen. This shit hurts." § 87(2)(b) repeatedly states that she is trying to go home. § 87(2)(b) complains about being arrested while she was trying to go home. At 02m10s, § 87(2)(b) states, "They popped my arm. No." § 87(2)(b) repeatedly slams her feet into the ground and moves around while shouting toward Det. Moccia. At 02m41s, § 87(2)(b) states, "These hurt. I'm not even gonna try to move, these hurt. These fucking hurt." § 87(2)(b) repeatedly states that, "these hurt." At 02m54s, § 87(2)(b) is heard stating, "They popped my fucking arm I heard it break." At 03m04s, § 87(2)(b) is heard stating, "This shit hurts. My arm, it made a cracking sound. They pushed me to the floor. Grabbing my neck. For what?" § 87(2)(b) complains about being taken to the floor and being arrested multiple times throughout the video. At 03m42s, § 87(2)(b) repeats, "My arm cracked." She continues on to state that her arm hurts and cracked multiple times throughout the video. § 87(2)(b) continues to move her upper body around and slam her feet into the ground while making these statements. At 05m35s, § 87(2)(b) asks, "Do they have a fucking infirmary? This shit hurts." before continuing to complain of the arrest and the pain in her arm. PO Hossain and Det. Moccia are seen inside of the

vehicle at the time. At 40m17s, § 87(2)(b) repeats, “Ow,” multiple times while she is escorted to a line of other civilians but does not otherwise state anything else. § 87(2)(b) does not specifically ask for medical attention for her arm from either PO Hossain or Det. Moccia (Board Review 01).

According to PO Hossain, § 87(2)(b) and § 87(2)(b) were placed inside of a van. PO Hossain was instructed to go with the two of them for the process. PO Hossain went into the van with one other officer, identified by the investigation as Det. Moccia. While inside, § 87(2)(b) and § 87(2)(b) shouted and cursed towards officers. § 87(2)(b) mentioned that she had pain in her arm while inside the vehicle. PO Hossain did not recall how many times she stated this, but it was more than once. PO Hossain did not observe any visible injuries. § 87(2)(b) did not request any medical attention at the time. If a civilian requested medical attention, PO Hossain would have been required to obtain it. PO Hossain did not obtain any medical attention for § 87(2)(b) because she did not directly ask. PO Hossain did not know if § 87(2)(b) requested any medical attention from another officer. PO Hossain did not know how severe § 87(2)(b)'s pain was due to her constant screaming and cursing. PO Hossain did not believe § 87(2)(b) needed medical attention (Board Review 12).

According to Det. Moccia, while he did not have independent recollection of the incident, he recalled being assigned to a prisoner van at the time. Det. Moccia was shown PO Hossain's BWC video from 05m00s to 05m30s, where § 87(2)(b) is heard stating multiple times that her arm hurts and felt broken. Det. Moccia affirmed that he heard § 87(2)(b) state that her arm hurts. Det. Moccia did not recall either § 87(2)(b) or § 87(2)(b) requesting for medical attention. Det. Moccia did not recall if any ambulance was called (Board Review 22).

§ 87(2)(g)

It is therefore recommended that **Allegations P and Q** be closed as **unfounded**.

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

It is therefore recommended that **Allegations R and S** be closed as **Other Possible Misconduct Noted**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 30).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 31).
- Lt. Blanco has been a member of service for 11 years and this is the first CCRB complaint to which he has been a subject.
- PO Chau has been a member of service for five years and this is the first CCRB complaint to which she has been a subject.
- PO Hossain has been a member of service for three years and a subject in one other CCRB complaint and one allegation, which has not been substantiated. § 87(2)(g)
- PO Nunez has been a member of service for six years and a subject in one other CCRB complaint and five allegations, none of which were substantiated. § 87(2)(g)
- Det. Moccia has been a member of service for 19 years and a subject in four CCRB allegations and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming assault and battery, negligence, violation of civil rights, and stopped through racial profiling and seeking \$2 million as redress. A 50H heard was held on § 87(2)(b) (Board Review 32, Board Review 33).
- As of July 18, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) in regard to this complaint (Board Review 38).

§ 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Squad: 3

Investigator: Shadman Khan Investigator Shadman Khan July 15, 2022
Signature Print Title & Name Date

Squad Leader: Rolando Vasquez IM Rolando Vasquez July 21, 2022

Signature

Print Title & Name

Date